

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 14, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

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- | | |
|----------------------|--|
| 1.
9:00 AM | MSP07-01407 IN MATTER OF ANGEL LURRY SPECIAL NEEDS TRUST
HEARING IN RE: TWELFTH AND FINAL ACCOUNT AND REPORT OF TRUSTEE FILED BY IMT ASSOCIATES
ON 12/29/25

Need: <ol style="list-style-type: none">1. Proof of mailing to all persons entitled to receive notice, including Dept. of Health Care Services who requested special notice2. Verified declaration by petitioner to include financial account statement(s) as required by PrC § 2620(c)(2)3. Verified declaration by attorney and petitioner to show nature and difficulty of tasks performed, results achieved, benefit of services to the beneficiary, and to specify the amount requested for each category of service provided. CRC § 7.776 (also time and hourly rate)4. Proposed Order |
|----------------------|--|

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2A.

9:00 AM

P22-01958

ESTATE OF ARLINE TEDESCHI

HEARING IN RE: FIRST AMENDED CONTEST AND GROUNDS OF OBJECTION TO PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT; PETITION TO CONTEST TRUST FOR UNDUE INFLUENCE; FOR CONSTRUCTIVE FRAUD; FOR CONSTRUCTIVE TRUST; TO PRECLUDE USE OF TRUST FUNDS; AND FOR ORDER FOR PARTIAL DISTRIBUTION FILED ON 01/16/24 BY GLORIA

-- See also Line # 6 --

Need appearances to report status, including discovery

Notes:

- a. Objections by Beneficiaries Leah Slattery, Robert D. Slattery, and Meredith Donahue filed 1-22-2024.
- b. Paulette Slattery's Response and Objection filed 3-28-2024.
- c. Response and Objection of Paulette Slattery filed 5-13-2024.

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2B.

9:00 AM

P22-01958

ESTATE OF ARLINE TEDESCHI

HEARING IN RE: PETITION FOR PROBATE OF WILL & FOR LETTERS TESTAMENTARY WITH IAEA FILED
ON 12/01/22 BY PAULETTE SLATTERY

Need appearances to report status, including discovery

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4A.

P23-01092

ESTATE OF: RICHARD MENCHACA

9:00 AM

HEARING IN RE: WAIVER OF ACCOUNT, PETITION FINAL DISTRIBUTION, ALLOWANCE OF
COMPENSATION FILED ON 08/11/25 BY JOSEPH MENCHACA

Need:

1. Appearances
2. Clarification whether attorney has been accepting compensation for representing personal representative prior to receiving court order determining that they are entitled to the fees. See *Alberton v. State Bar of California* (1987) 43 Cal.3d 638; 738.P.2d 720; 238 Cal.Rptr. 374. ¶ 5 at page 4 indicates fees of \$10,000.00 were paid to attorney from personal funds of personal representative. Decl. filed 12-29-2025, indicates balance of funds paid to attorney.
3. Revised, proposed Order that includes attorney's State Bar Number in caption

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4B.

9:00 AM

P23-01092

ESTATE OF: RICHARD MENCHACA

HEARING IN RE: PETITION FOR ORDER UNDER PROBATE CODE SECTION 850 AUTHORIZING AND DIRECTING POSSESSION, CONVEYANCE OR TRANSFER OF REAL PROPERTY TO ESTATE FILED BY JOSEPH MENCHACA ON 12/29/25

Need:

1. Appearances
2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on Adam Algahim. PrC § 851(a)(2)

Note: Proposed Order includes orders authorized in an unlawful detainer action.

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6A.

9:00 AM

P23-01338

MATTER OF: TEDESCHI FAMILY TRUST DATED JULY 15, 2015

HEARING IN RE: THIRD AMENDED PETITION TO CONTEST TRUST FOR UNDUE INFLUENCE; FOR FINANCIAL ELDER ABUSE; CONTEST AND GROUNDS OF OBJECTION TO PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT; FOR A FINDING OF VIOLATION OF NO CONTEST CLAUSE; FOR CONSTRUCTIVE FRAUD; FOR CONSTRUCTIVE TRUST; TO PRECLUDE USE OF TRUST FUNDS FILED ON 4-28-25 BY GLORIA SCOLARI

-- See also Line # 2 --

Need:

1. Appearances
2. Proposed Order

Notes:

- a. Caption includes "Contest and Grounds of Objection to Petition for Probate of Will..."
- b. This file was opened as a trust case. This estate would have to be filed in its own case number as a separate *in rem* proceeding.
- c. Response and Objection filed by Paulette Slattery 07/29/25 and 3-26-2026.

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6B.

9:00 AM

P23-01338

MATTER OF: TEDESCHI FAMILY TRUST DATED JULY 15, 2015

HEARING IN RE: DEMURRER TO THIRD AMENDED PETITION TO CONTEST TRUST FOR UNDUE
INFLUENCE FILED BY PAULETTE SLATTERY ON 8/7/25

Need appearances

Note: Order Re: Demurrer to Third Amended Petition filed 2-25-2026.

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8. **P25-00445** **MATTER OF: THE SPINALE FAMILY TRUST, DATED 11/18/05**
9:00 AM HEARING IN RE: TO COMPEL TRUSTEE TO ACCOUNT; TO REMOVE TRUSTEE & APPOINT SUCECSSOR
TRUSTEE; RETURN OF TRUST ASSETS & SURCHAGE FILED ON 03/13/25 BY MARY ELLEN SPINALE

Need appearances to report status

Note: Objection filed by Dominic Spinale 09-24-25.

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9. **P25-00465** **ESTATE OF: ESTEBAN CUBILLAS**
9:00 AM HEARING IN RE: STATUS OF PROBATE ADMINISTRATION.

Drop.

Note: Petition for the Termination of Further Probate Proceedings filed by
Administrator Xiomara Mercy Cubillas Vilela 3-18-2026, is set for hearing 7-21-2026.

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10.

9:00 AM

P25-00513

ESTATE OF: GONZALO LEONGUERRERO

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION W/AIEA FILED ON 3-25-25 BY LUKE LEON GUERRERO

Need:

1. Appearances
2. Verified declaration by petitioner to complete Petition item 2.d, regarding bond.
3. Verified declaration by petitioner to complete Petition item 3e, if needed per above
4. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 8100; LR 7.151(e)
5. Revised Order for Probate Form DE-140 with attorney's information in the caption

Note: Letters of Special Administration issued to Luke Leonguerrero expire 05/29/2026.

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11. **P25-01340** **MATTER OF: STALKER REVOCABLE LIVING TRUST, DATED SEPTEMBER 5, 1984**
9:00 AM PETITION FOR FINANCIAL ELDER ABUSE; RETURN OF TRUST PROPERTY; MENTAL EXAMINATION OF
MARGARET STALKER FILED ON 8-1-25 BY DR. JAMES STALKER

Need:

1. Appearances
2. Verified declaration by petitioner to itemize the trust property to be returned
3. Verified declaration by petitioner to include copies of all trust instruments
4. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
5. Proposed Order

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12. P25-01863 MATTER OF: ELMER AND ADELIE BISCHOFF SURVIVOR'S TRUST F/B/O MARK BISCHOFF

9:00 AM PETITION TO (1) REMOVE CO-TRUSTEES AND APPOINT SUCCESSOR TRUSTEE; (2) TO SUSPEND CO-TRUSTEES AND APPOINT TEMPORARY TRUSTEE; (3) FOR SURCHARGE FOR BREACH OF TRUST; (4) FOR ORDER COMPELLING RETURN OF TRUSTEE FEES; AND (5) TO INSTRUCT CO-TRUSTEES RE USE OF TRUST FUNDS FOR ATTY FESS FILED ON 10/16/25 BY MARK BISCHOFF

Need:

1. Appearances
2. Bond presented for filing before Order will be signed.
3. Proposed Order

Notes:

1. Response and Objection filed by Katie Hawkinson and Ann Murphy 2-26-2026.
2. Reply is lodged in file.

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13.	P25-02325	MATTER OF: THE ALEX K. LIU LIVING TRUST, DATED NOVEMBER 15, 2000; THE LIU EXEMPT TRUST FBO BARBARA LIU-MCDOWELL AND THE LIU MANAGEMENT TRUST FBO BARBARA LIU-MCDOWELL
9:00 AM	PETITION TO REMOVE TRUSTEE; APPOINT SUCCESSOR TRUSTEE; INSTRUCTIONS FILED ON 12/30/25 BY BARBARA LIU	
	Need: 1. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203 2. Proposed Order	